

**Court No. - 21**

**Case :-** WRIT - C No. - 45064 of 2014

**Petitioner :-** Rajesh Kumar Gupta

**Respondent :-** U.P.P.C.L. Thru' Chairman & 2 Others

**Counsel for Petitioner :-** Tarun Tiwari

**Counsel for Respondent :-** Mahboob Ahmad

**Hon'ble Amreshwar Pratap Sahi,J.**

**Hon'ble Vivek Kumar Birla,J.**

Heard learned counsel for the petitioner and Sri R.S. Umrao for the respondent-Electricity Department.

The petitioner is before this Court questioning the correctness of the order of the Sub Divisional Officer of the Electricity Department dated 30.6.2014 on the ground that the petitioner is being erroneously denied the electricity connection in a dispute between landlord and tenant.

Sri Umrao, learned counsel for the respondent-Electricity Department, submits that unless the petitioner fills up the indemnity bond, the connection cannot be granted. Sri Umrao has further invited the attention of the Court to Clause 4.4 of the Electricity Supply Code, 2005.

This writ petition is, therefore, disposed of with a direction to the respondent no.2 to consider the aforesaid request of the petitioner in accordance with law and the provisions aforesaid and pass appropriate orders preferably within a period of six weeks from the date of presentation of a certified copy of this order before him, after putting the landlord and tenant to notice.

**Order Date :-** 28.8.2014

Anand Sri./-